# MURSHAD LAWYERS & CONSULTANT

Date: 6th of March 2026
To
M/s Magnus Apparel Manufacturer
Monoo Chowk, Defence Road
Off Raiwind Road, Near Nobel TV,
Lahore.

School Education Deptt.
17-03-26

**Through Courier / Registered Post**

**Subject:** Reply to your Legal Notice dated 25/02/2026 received on dated 03/03/2026, Ref: CS/LN/01/26 regarding alleged Crescent School Uniforms addressing my client Brite House.

---

Under instructions from and on behalf of my client, **Brite House – Specialist School and College Uniforms**, Shop No.7, Al-Razzak Plaza, Main Market, Samanabad, Lahore (hereinafter referred to as "the Client"), I hereby submit this reply to your legal notice dated 25/02/2026 received by my client on 03/03/2026 bearing Ref: CS/LN/01/26 addressing my client Brite House regarding alleged unauthorized sale or manufacturing of Crescent School uniforms.

---

# 1. PRELIMINARY OBJECTIONS

1. That the legal notice is misconceived, baseless, and legally defective, as it fails to disclose any lawful authority under which your client claims exclusive rights to enforce alleged proprietary rights in respect of Crescent School uniforms.
2. That your notice lacks any documentary evidence of authorization from Crescent Model High School, trademark or intellectual property registration, or exclusive vendor rights.
3. That your notice relies on vague and unverified assertions ("mystery shopping," "credible information") without attaching invoices, photographs, or samples proving the alleged sale by my client.
4. That your notice mischaracterizes lawful commercial activity as "counterfeit" or "passing off," when my client is engaged in selling generic school uniforms lawfully available in the market.
5. That your notice appears to be an attempt to intimidate and harass my client into halting lawful business, which constitutes abuse of legal process and may be actionable under civil and criminal law.
6. That the notice appears to be an attempt to create an unlawful monopoly in the uniform market, which is contrary to the principles of fair competition.
7. That an individual identifying himself as Imran Ashfaq, using mobile number +92-300-9445994, and claiming to be a representative of M/s Magnus Apparel Manufacturer, has repeatedly contacted my client over the past week and subjected him to unwarranted threats and harassment. Such conduct is illegal, unlawful, and constitutes criminal intimidation and harassment within the meaning of the Pakistan Penal Code.

8. That under Article 18 of the Constitution of Pakistan, every citizen has the fundamental right to conduct lawful trade and business.

---

## 2. PARA-WISE REPLY TO ALLEGATIONS

**Allegation:** Manufacturing, stocking, and selling "counterfeit" Crescent School uniforms.
**Reply:** **DENIED.** My client sells lawful, generic school uniforms that are commonly available in the open market. There is no misrepresentation, no fraudulent marking, and no use of Crescent School logos or proprietary marks.

**Allegation:** Passing off and infringement of intellectual property and proprietary rights.
**Reply:** **DENIED.** Your notice fails to demonstrate existence of any registered trademark, copyright, or proprietary design. Without documented ownership or exclusive rights, your allegations have no legal basis.

**Allegation:** Misrepresentation and deception of parents and public.
**Reply:** **DENIED.** My client does not mislead or misrepresent the origin of uniforms to customers. Parents and buyers are informed and aware that Brite House is an independent vendor.

**Allegation:** Evidence from "market surveillance and mystery shopping."
**Reply:** **DENIED.** Your notice fails to provide invoices, purchase receipts, or verifiable documentation to support these claims. Evidence must be disclosed before any legal action.

**Demand:** Cease and desist from selling uniforms and provide written undertaking.
**Reply:** My client lawfully conducts business, and no undertaking can be given regarding lawful sale of generic school uniforms.

All allegations contained in your notice are categorically denied and you are put to strict proof thereof in accordance with the provisions of the Qanun-e-Shahadat Order, 1984. It is a settled principle of law that the burden of proof lies upon the party asserting a fact, and unless credible documentary evidence is produced, the allegations made in your notice remain legally unsustainable. Your notice appears to be based upon selective and incomplete facts and is therefore liable to be treated as suppression and misrepresentation of material facts. Any attempt to initiate frivolous or vexatious proceedings on the basis of the unfounded allegations contained in your notice shall be strongly contested and appropriate proceedings for costs and damages may be initiated. The contents of your notice disclose no valid cause of action against my client and therefore any proceedings instituted on its basis shall be liable to *dismissal in limine*.

---

## 3. CLARIFICATION OF TRUE FACTS

- My client is a lawful retailer specializing in school and college uniforms for the last 40 years at the same address.
- My client's uniforms are generic, non-branded products legally available in the open market.

- My client has received harassing phone calls and threats from you, which are being documented and we reserve the rights to proceed against you for this illegal and unlawful act.

---

# 4. LEGAL POSITION

1. No Exclusive Vendor Authority:

   Crescent Model High School cannot grant exclusive manufacturing or selling rights to any party without regulatory authorization. There is no evidence Magnus Apparel Manufacturer possesses such authority.

2. Competition Commission Law:

   Your attempt to enforce exclusive sale violates provisions of the Competition Commission Act, 2010, and is anti-competitive. Recent CCP actions confirm that private schools cannot force exclusive suppliers for uniforms, books, or stationery.

3. Constitutional Right:

   Under Article 18 of the Constitution of Pakistan, every citizen has the right to conduct lawful trade or business, including sale of school uniforms.

4. No Intellectual Property Violation:

   The notice does not reference any registered trademark, copyright, or design, which is a prerequisite for infringement claims.

5. Punjab Education Ordinance 1984:

   Section 7A(10) prohibits coercive tying of suppliers to private educational institutions. Magnus' notice relies on a non-existent exclusive monopoly.

6. Legal Burden:

   It is a settled principle that the burden of proof lies with the party claiming exclusive rights or infringement, i.e., Magnus Apparel Manufacturer.

---

# 5. WARNING AGAINST FALSE PROCEEDINGS

Your client is hereby cautioned against filing false, vexatious, or malicious proceedings. Any attempt to harass, threaten, or coerce my client may result in:

- Civil and defamation damages claims
- Criminal complaints for intimidation and harassment

- Regulatory complaints to Competition Commission of Pakistan, Punjab Education Department, Punjab Defamation Tribunal, CM Portal, Chief Secretary, Police, FIA etc.

---

## 6. RESERVATION OF RIGHTS

This reply is issued without prejudice to all rights and remedies available to my client, all of which are expressly reserved, including but not limited to:

- Initiation of civil and defamatory proceedings for damages and injunctions
- Filing complaints with regulatory authorities
- Seeking criminal action for harassment

My client remains committed to conducting business lawfully and professionally, and reserves the right to respond to any future correspondence or proceedings.

---

Murshad Lawyers & Consultants

Copies of this reply are being forwarded for information and appropriate action to the following authorities in view of the unlawful intimidation, harassment, and apparent anti-competitive conduct faced by my client:

1. **Chief Minister's Complaint Cell, Government of Punjab** – for information regarding the unlawful acts complained of herein.
2. **Chief Secretary, Government of Punjab, Lahore** – for appropriate administrative action in respect of the intimidation and harassment reported by my client.
3. **Capital City Police Officer (CCPO), Lahore** – for necessary action regarding criminal intimidation and harassment.
4. **Competition Commission of Pakistan (CCP), Islamabad** – for examination and investigation of potential anti-competitive practices under the **Competition Act, 2010**.
5. **District Education Authority, Lahore** – regarding attempts to unlawfully restrict open-market sale of school uniforms.
6. **School Education Department, Government of Punjab, Lahore** – for information and appropriate regulatory consideration.
7. **Director General, Federal Investigation Agency (FIA), Lahore** – regarding threatening communications and harassment directed towards my client.
8. **Deputy Commissioner, Lahore** – for regulatory oversight in respect of commercial practices affecting consumers and traders.
9. **Chairman, Punjab Defamation Tribunal, Lahore** – for information in view of the defamatory allegations contained in the notice issued by your client.

**For information and necessary action, if so advised**

0336 0007478